

Court No. - 2

Case :- WRIT - C No. - 37731 of 2011

Petitioner :- Sabhajeet Tiwari

Respondent :- U.P. Power Corporation And Another

Petitioner Counsel :- Sunil Kumar Singh, Hari Shanker

Respondent Counsel :- H.P. Dube

Hon'ble Ashok Bhushan, J.

Hon'ble Bharati Sapru, J.

Heard learned counsel for the petitioner and Sri H.P.Dube, Advocate appearing for the respondents.

By this writ petition the petitioner has prayed for a direction to the respondent no.2 to consider the grievance of the petitioner and decide the application dated 23rd March, 2011.

The petitioner is aggrieved by a electricity bill dated 31st March, 2011. The petitioner has made an application to the Superintending Engineer on 23rd March, 2011.

Learned Counsel for the respondent submits that since the petitioner is disputing the bill, appropriate remedy is available to the petitioner to make an application under Clause 6.5 of U.P. Electricity Supply Code, 2005 before the Executive Engineer.

In view of the aforesaid, we are of the view that the petitioner may avail the appropriate remedy under Clause 6.5 of the Code and make an application before the Executive Engineer, which may be decided in accordance with law.

The Writ Petition is disposed of accordingly.

Order Date :- 12.7.2011

S.P.